

Per Curiam

judgment as a matter of law.” Fed. Rule Civ. Proc. 56(a). In making that determination, a court must view the evidence “in the light most favorable to the opposing party.” *Adickes v. S. H. Kress & Co.*, 398 U.S. 144, 157 (1970); see also *Anderson*, *supra*, at 255.

Our qualified-immunity cases illustrate the importance of drawing inferences in favor of the nonmovant, even when, as here, a court decides only the clearly established prong of the standard. In cases alleging unreasonable searches or seizures, we have instructed that courts should define the “clearly established” right at issue on the basis of the “specific context of the case.” *Saucier*, *supra*, at 201; see also *Anderson v. Creighton*, 483 U.S. 635, 640–641 (1987). Accordingly, courts must take care not to define a case’s “context” in a manner that imports genuinely disputed factual propositions. See *Brosseau*, *supra*, at 195, 198 (inquiring as to whether conduct violated clearly established law “‘in light of the specific context of the case’” and construing “facts . . . in a light most favorable to” the nonmovant).

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In holding that Cotton’s actions did not violate clearly established law, the Fifth Circuit failed to view the evidence at summary judgment in the light most favorable to Tolan with respect to the central facts of this case. By failing to credit evidence that contradicted some of its key factual conclusions, the court improperly “weigh[ed] the evidence” and resolved disputed issues in favor of the moving party, *Anderson*, 477 U.S., at 249.

First, the court relied on its view that at the time of the shooting, the Tolans’ front porch was “dimly-lit.” 713 F. 3d, at 307. The court appears to have drawn this assessment from Cotton’s statements in a deposition that when he fired at Tolan, the porch was “‘fairly dark,’” and lit by a gas lamp that was “‘decorative.’” *Id.*, at 302. In his own deposition, however, Tolan’s father was asked whether the gas lamp was